



File No.: EXP202312944

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 5, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in the procedure for the exercise of rights of file number EXP202301368, followed against ATLAS ENTERTAINMENT, S.L. (hereinafter, the respondent).

In this file, it is recorded that the complainant exercised their right to erasure of the personal data concerning them, without this request being duly addressed, issuing a resolution requiring the following:

“FIRST: TO GRANT the complaint filed by A.A.A. and to urge ATLAS ENTERTAINMENT, S.L., with NIF B09782574, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the exercised right of erasure or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution.

The actions carried out as a consequence of this Resolution must be communicated to this Agency within the same period. The failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.”

SECOND: The resolution of the procedure for the exercise of rights, in which the respondent was granted a period of ten working days to address the exercise of the right to erasure, was duly notified to the respondent in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by means of electronic notification, on May 15, 2023, as recorded in the acknowledgment of receipt in the file.

THIRD: On May 23, 2023, and under number REGAGE23e00032640793, an appeal for reconsideration was registered, presented by the complainant, in which they state that they still have not received a response from the respondent regarding the requested and unaddressed right. This appeal for reconsideration was dismissed on June 7, 2023, due to the absence of contradiction between what was resolved by this Agency, that is, a grant due to the lack of response regarding the requested and unaddressed right, and what was stated by the complainant.

FOURTH: After the period granted for the required actions in the resolution of the procedure for the exercise of rights EXP202301368 had elapsed without this Agency having been informed of these, the following was sent to the party.

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requested the respondent to, within five business days, send to the claimant a certification of compliance with said resolution and, within ten business days, notify this Agency of the measures adopted.

These requests, recorded as sent on June 7 and July 12, 2023, were notified in accordance with the rules established in the LPACAP and were collected by the responsible party on June 15 and July 21, 2023, as evidenced by the acknowledgments of receipt in the file.

FIFTH: After the period of the initial resolution and the subsequent requests had elapsed, the respondent has not sent any response to this Agency that certifies that it has addressed the right of erasure exercised or that it has denied it with justification indicating the reasons why the request cannot be granted.

SIXTH: Against the aforementioned resolution, no ordinary administrative appeal can be made due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record of such an appeal being filed or a request for precautionary suspension of the resolution.

SEVENTH: According to the report obtained from the AXESOR tool, the entity ATLAS ENTERTAINMENT, S.L. is an SME (Microenterprise) established in 2022 for which no financial information is available.

EIGHTH: On October 16, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

The aforementioned initiation agreement was received by the respondent on October 25, 2023, as evidenced by the acknowledgment of receipt in the file.

NINTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the deadline granted for the submission of allegations had passed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in this procedure:

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PROVEN FACTS

FIRST: The resolution of the rights exercise procedure and the requests for compliance indicated in the first, second, and fourth antecedents were notified in accordance with the provisions of the LPACAP. This resolution became firm and enforceable due to the expiration of the deadlines provided for the filing of the appeals indicated therein.

SECOND: The respondent has not sent any response to this Agency that certifies compliance with the resolution.

THIRD: The initiation agreement of the present sanctioning procedure was notified to the respondent, in accordance with the provisions of the LPACAP, on October 25, 2023.

FOURTH: The respondent has not submitted any allegations to the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data

Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation not fulfilled

In accordance with the evidence available, it is considered that the respondent has failed to comply with the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent, for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

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(...)

d) to order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe;"

III

Classification and Qualification of the Violation

This violation is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this Article with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for violations, the alleged violation is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating factors apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 1,000.00 euros.

V

Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe...".

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It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on ATLAS ENTERTAINMENT, S.L., with NIF B09782574, for a violation of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, a fine of 1,000.00 euros (ONE THOUSAND euros).

SECOND: TO REQUIRE ATLAS ENTERTAINMENT, S.L., with NIF B09782574, to submit, within ten working days following the notification of this resolution, a certification to the claimant addressing the exercised right of Erasure or providing a reasoned denial indicating the reasons why the request cannot be accommodated, in accordance with the provisions established in the resolution of the rights exercise procedure of file number EXP202301368. Furthermore, the actions taken must be communicated to this Agency within the same timeframe.

THIRD: TO NOTIFY this resolution to ATLAS ENTERTAINMENT, S.L.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Data Protection Agency at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the Audiencia Nacional, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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